

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

BENTON'S OPPOSITION TO EXCLUSION AND COUNSEL PROFFER

Filed November 19, 2025.

Leora Benton opposes Blue Cedar's request to exclude the limited declaration of Tessa Wynn. Wynn was identified by both parties from the beginning, deposed by Blue Cedar, and examined about the very Northline handoff that supplies the setting for her later recollection. Her declaration does not introduce a new witness, a new comparator, or a new employment event. It adds detail to a disclosed continuity discussion after Wynn reviewed her transcript and recalled the words used. Benton served the signed declaration on November 4 and filed it with her November 10 opposition, giving Blue Cedar an opportunity to address it in the dispositive-motion reply. If the Court finds the subject should have been described earlier, a brief supplemental deposition and a reasonable fee award would cure any prejudice. Excluding important firsthand evidence is not necessary to protect the schedule or the January trial date.

The existing disclosures and discovery supplied context

Benton's August 15 disclosure identified Wynn for her duties, source metrics, calibration score, continuity exception, and work retained or received after the RIF. Blue Cedar's disclosure used substantially the same subjects. The March 7 Northline question arose in a continuity discussion and concerned work Wynn might receive. During Wynn's October 2 deposition, counsel asked about Northline, the timing of possible reassignment, her transition capacity, and what she understood from Voss's question. Blue Cedar therefore knew the speaker, listener, date range, assignment, and business setting before discovery closed.

Benton acknowledges that neither disclosure stated that Wynn possessed motive-related wording. She contends, however, that the later recollection elaborates a disclosed conversation instead of creating an unrelated evidentiary subject. Wynn did not flatly deny hearing the words later recounted, and her declaration does not say Pike spoke them or that a final selection had already occurred. At minimum, the overlap between the timely continuity subject and the later detail makes the scope question reasonable rather than evasive.

Substantial justification for a careful correction

Wynn first recognized the significance of the March 7 wording while reviewing her deposition transcript on October 13. She contacted Benton on October 14, and Benton forwarded the substance to counsel on October 15. Counsel did not immediately circulate an unverified paraphrase. Counsel interviewed Wynn on October 20, compared the recollection with the existing calibration chronology, and prepared a declaration that distinguished what Wynn heard from what she later inferred. Wynn reviewed the draft and signed it November 3; Benton served it the following day.

Counsel understood the initial disclosure to encompass the Northline continuity conversation and believed supplementation should identify the precise additional information only after the witness confirmed it. That judgment may be disputed, but it was directed toward accuracy, not tactical surprise. The declaration was served before Benton used it and six days before the opposition was due. Benton did not conceal Wynn's identity, prevent her deposition, or withhold the underlying handoff event. Those circumstances provide substantial justification for the short interval between learning the recollection and serving a verified account.

Any surprise can be cured without disturbing trial

The asserted prejudice is curable. Benton offers Wynn for a supplemental deposition of up to two hours, limited to the March 7 conversation and declaration preparation. She also offers reasonable document requests directed to that conversation and does not oppose a short, equal examination of Voss if the Court finds it necessary. Pike and Solis need not be reopened because the declaration attributes no statement to either of them. The existing reply date can be extended narrowly without moving the January 26 trial.

The declaration is important because Voss participated in Benton's calibration and the asserted words bear on the reason for a contemporaneous coverage question. Importance favors a merits decision with a proportionate cure. Blue Cedar already addressed the declaration in its exclusion motion and can address it again in reply; it identifies no lost document, unavailable witness, or irreversible discovery choice. Benton therefore asks the Court to deny exclusion, permit limited curative discovery if warranted, and award no sanction beyond reasonable costs directly caused by that discovery. This response does not ask the Court to decide whether Wynn or Voss is more credible at summary judgment.

Declaration of counsel concerning the chronology

I am counsel for Leora Benton and make this declaration from personal knowledge of the litigation file. Wynn's October 2 deposition addressed her comparator duties, metrics, continuity exception, and possible Northline assignment. On October 15 Benton forwarded Wynn's report that transcript review had prompted a more specific recollection. I spoke with Wynn on October 20. We discussed the date, participants, setting, exact limits of her memory, and the distinction between a conditional handoff question and a completed selection. I prepared a draft only after that interview. Wynn requested wording changes so the declaration would not imply that Pike spoke to her or that she knew the final choice on March 7.

Wynn approved and signed the final declaration on November 3. My office served it electronically on November 4 before attaching it to Benton's November 10 opposition. Before October 15, neither Benton nor her counsel knew Wynn recalled protected-activity wording in the conversation. We did not serve a separate subject notice or move for leave by October 17 because I believed the already disclosed Northline continuity subject encompassed the recollection and that accuracy required a signed account. I declare under penalty of perjury that the foregoing chronology is true.